

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 31-005

**Amendments to Title 3, Chapter 6 Section 6-601.3 of the Chickasaw Nation Code
(Rights of Majority)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and procedures for the conferring of majority on certain individuals, and

WHEREAS, the Legislature desires to amend those rules and procedures.

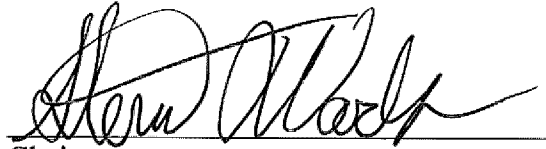
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6, Chapter 6 Section 6-601.3 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 6-601.3

**NOTICE OF HEARING; CERTIFIED MAIL AND BY
PUBLICATION IN NEWSPAPER.**

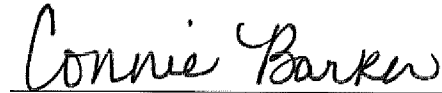
When the petition defined in Section 6-601.2 ~~6-309.2~~ is filed, the Court shall set ~~fix~~ a day for the hearing thereof. Notice of the hearing and a copy of the petition shall be sent by certified mail, return receipt requested, delivery restricted to addressee only, to the parents of the minor, if living, to the guardian of the minor, if one has been appointed, or to the person who has custody of the minor if such person is other than parent or guardian of the minor, and if both of the minor's parents are dead, the Court may order that notice be sent by certified mail, return receipt requested, delivery restricted to addressee only, to other relatives of the minor; provided, however, that no notice shall be sent to a person who endorses on the petition that notice of the day of the hearing is waived. Notice of the hearing shall also be given by publication in some newspaper printed in the county of the State of Oklahoma where the petitioner resides at least ten (10) days prior to the day set for the hearing. Before the Court may enter an order conferring majority rights in the hearing provided for herein, proof must be presented to the Court at said hearing that notice was given to all persons entitled thereto and that notice was published as provided herein.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 17, 2014, by a vote of 11 ayes, 0 nays, 0 abstentions.



Chairperson

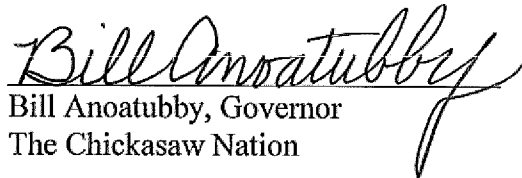
Chickasaw Tribal Legislature



Secretary

Chickasaw Tribal Legislature

Concur:


Bill Anoatubby, Governor
The Chickasaw Nation

Date:

APR 18 2014

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Explanation: This resolution corrects a reference in Section 6-601.3 to another section of the Chickasaw Nation Code and also amends the word “fix” to “set” for purposes of clarity. The amendments were requested by District Court Judge Dustin Rowe.

Presented By: Court Development Committee